Applying the Standard of Care

English tort law | Study guide | Risk, reasonable precautions and breach

1. From the standard to the facts

The **standard of care** is the level of care the law requires. Applying it means asking what a reasonable person in the defendant's position would have done in the circumstances. A **breach** occurs when the defendant falls below the applicable standard. An accident alone does not prove a breach.

Judge the conduct using the information reasonably available **before the accident**. Knowing afterwards that somebody was injured must not turn reasonable care into a duty to predict everything. This is the danger of hindsight.

2. Four connected considerations

Likelihood: how probable was injury, considering exposure and previous incidents? A possible event is not necessarily a likely event.
Seriousness: how grave could the foreseeable injury be? A rare event may still deserve attention if its consequences could be severe.
Precautions: what practical steps were available, and what cost or difficulty would they involve?
Purpose: was there a legitimate benefit to the activity or a reason for taking the risk? A useful activity does not excuse every danger.

3. Reasonable care is contextual

These considerations interact; they are not a mechanical formula. A cheap, effective precaution can be required even where an accident is unlikely. Conversely, the law does not generally require elimination of every conceivable danger whatever the burden.

Invented example: a loose cable crosses a college corridor. Nobody has tripped yet, but moving it is easy and a fall could cause serious injury. A lack of previous accidents does not by itself justify leaving it there.

> Key vocabulary: likelihood = chance of harm; seriousness = severity of harm; precaution = protective step; breach = failure to meet the required care. Keep these ideas separate before weighing them together.

Scope: general principles used in English negligence law. Special standards for children or professional work require separate analysis. The professional-negligence name mentioned in the transcript is Bolam, not "Bolum".

Bolton v Stone

1. What happened?

In **Bolton v Stone [1951] AC 850**, a cricket ball left a ground and injured Miss Stone while she stood on the road outside her home. She sued representatives of the cricket club. The batsman himself was not the defendant.

The boundary had a fence, and the ground rose towards it. Balls had escaped only very rarely over many years; there was no history of comparable injuries. The possibility of a ball reaching someone outside was foreseeable, but the chance of injury was exceptionally small.

2. Who won, and why?

The club representatives won in the House of Lords. On these facts, the failure to take further precautions was not negligence. The question was whether a reasonable person would have taken additional steps against this very slight risk of injury.

This does not mean a cricket ball cannot cause serious harm. **Low likelihood and low seriousness are different.** Nor did the court hold that the accident was physically impossible or that sporting activities are immune from liability.

3. Avoid the shortcut in the transcript

Do not explain the result simply as “a higher fence was too expensive”. The case turns on the exceptionally slight risk in its circumstances. The burden of precautions belongs in the wider analysis, but a specific cost finding should not be invented.

Invented variation: balls now leave a ground every week and land beside a busy school entrance. Both exposure and the frequency of danger have changed. Bolton does not automatically protect that club; reasonable netting or other precautions would need consideration.

> Exam point: “It was foreseeable” starts the inquiry. It does not, by itself, answer whether failing to take a particular precaution was unreasonable.

Remember the parties: Miss Stone was the injured claimant; the successful defendants represented the club. The outcome concerns the facts and risk proved in this case, not a general permission to endanger passers-by.

The Wagon Mound (No 2)

1. An oil spill and a harbour fire

In **The Wagon Mound (No 2)**, oil carelessly escaped from a ship into Sydney Harbour. It spread towards vessels undergoing repairs. The oil caught fire, probably after hot metal from repair work ignited combustible material floating in it, and the fire damaged the vessels.

A properly qualified chief engineer should have recognised a small but real risk of ignition. If fire occurred, serious damage was very likely. Preventing the discharge was straightforward, and spilling the oil served no legitimate purpose.

2. Who won, and why?

The claimant shipowners succeeded on negligence in the Privy Council. A small risk was not enough to excuse inaction where it was real and easily prevented. The damages judgments in their favour were affirmed.

The earlier trial had rejected negligence but allowed recovery in nuisance. The Privy Council’s decision changed the legal basis supporting recovery. For study purposes, distinguish success on negligence from a blanket statement that every appeal was dismissed.

3. Why this differs from Bolton

Both cases involved an unlikely event. In Bolton, the extraordinarily slight risk was acceptable in its circumstances. Here, a competent engineer should have recognised the danger and could readily have stopped the spill. The question is not probability alone, but whether reasonable care required action.

Do not say that nobody could foresee oil burning on water. That contradicts the finding relevant to the reasonable chief engineer in No 2. Also distinguish the small probability of ignition from the severe harm likely if ignition occurred.

> Small likelihood + serious foreseeable harm + easy prevention can require a precaution. “Unlikely” does not automatically mean “reasonable to ignore”.

The judgment was delivered in 1966 and reported in [1967] 1 AC 617. No 2 concerned shipowners and different evidence from The Wagon Mound (No 1), the earlier wharf-owner case associated with remoteness. Do not merge their findings.

Check Your Understanding

1. Does an accident prove breach?
Answer: No. Compare the defendant's conduct with the applicable standard using the circumstances reasonably knowable before the accident.

2. What is the difference between likelihood and seriousness?
Answer: Likelihood concerns whether harm will occur; seriousness concerns how grave it could be. A rare event can cause very serious harm.

3. Why did the club representatives win in Bolton?
Answer: The chance of injury was exceptionally small and further precautions were not required on the facts. Injury was possible, but possibility alone did not establish breach.

4. Is "a new fence was too expensive" a sufficient explanation?
Answer: No. Do not invent a decisive cost finding. Explain the slight risk and evaluate precautions in context.

5. Why did the shipowners succeed in Wagon Mound No 2?
Answer: A reasonable chief engineer should have recognised a real fire risk, and preventing the spill was easy and justified. The small likelihood did not excuse doing nothing.

6. Can a defendant always ignore a low-probability risk?
Answer: No. Consider seriousness, effective precautions and their burden, and any legitimate reason for the activity.

7. Does proving breach complete a negligence claim?
Answer: No. The claimant must also establish the relevant duty, causation and legally recoverable damage, including remoteness requirements.

> Exam sequence: identify the applicable standard → assess foreseeable harm before the event → weigh likelihood and seriousness → identify practical precautions and their burden → explain breach or no breach → consider the remaining requirements.

Sources

Based on the supplied Law Academy transcript, with factual and legal corrections. Primary judgments: Bolton v Stone [1951] AC 850; [1951] UKHL 2; The Wagon Mound (No 2) [1967] 1 AC 617; [1966] UKPC 10. Invented examples are marked. The case summaries explain breach; they do not replace the separate elements of negligence.